

Found Brand Agency Services Agreement

This Services Agreement ("Agreement") between Found Brand Agency ("Agency") and The Launch Box ("Client") is effective as of February 1, 2024 ("Effective Date"). For purposes of this Agreement, Agency and Client may be jointly referred to as the "Parties" and individually referred to as a "Party".

Project Scope of Work

The Launch Box is engaging Found Brand Agency to discover and develop brand definition, logo and graphic design, website design and development, marketing strategy and design templates for a new investment venture, DXFoundation. Found Brand Agency will execute this work in five phases.

1. Discovery and Brand Definition
2. Brand Identity and Visual Design
3. Website Architecture and Content Consulting
4. Website Implementation and Management
5. Business Development and Marketing Templates

Project Scope by Phase

1. Discovery and Brand Definition

\$13,900

- Scope
 - Research on competitive landscape, market positioning, unique differentiators
 - Interviews with 3-5 key stakeholders to assess current state and internal alignment to existing identity
 - Assessment of competitive landscape visual brands and website presentations
 - Brand and identity discovery working sessions and synthesis
 - + Brand mascot / character discovery and alignment
 - Define identity differentiators and brand positioning
 - Identity pillars, Brand promise, Reasons to believe
 - Define external brand messaging
 - Spoken elevator pitch
 - Brand discovery and readout synthesis
- Deliverables
 - Documentation and readouts summarizing identity definition, brand positioning and output on all of above

2. **Brand Identity and Visual Design**

\$15,250

- Scope
 - Develop visual brand design concepts
 - Refine visual brand concepts over 2-3 revisions
 - Design and illustration for core logo, wordmark, and secondary logo lockups
 - Define brand colors and fonts, and usage guidelines
 - Stock photography and illustration art direction
- Deliverables
 - Documentation and readouts summarizing brand design direction, visual presentation inspiration
 - Web-based brand standards and guidelines
 - Brand artwork assets for digital and print use

3. **Website Architecture and Content Consulting**

\$6,800

- Scope
 - Research on competitive websites, industry standard
 - Recommendations for content architecture and sitemap
 - Recommendations for technology platform and implementation
 - Co-develop content plan with TLB, including content wireframes and content document templates
 - Scope copywriting and content development needs
- Deliverables
 - Documentation and readouts summarizing all of the above

4. **Website Implementation and Management**

\$9,100

- Scope
 - Squarespace set-up and configuration
 - Squarespace customization and architecture implementation
 - Squarespace template design, brand and design system implementation
 - Content layout and implementation for 5-8 pages
- Deliverables
 - Live website on Squarespace with brand and key content implemented

5. **Business Development and Marketing Templates**

\$9,600

- Scope
 - Develop presentation and document templates for business development uses
 - Develop layouts and designs for core brand communications and social media posts
 - Develop introduction/pitch deck + one pager in collaboration with content stakeholders
- Deliverables
 - Microsoft PowerPoint and Word templates for proposals and presentations
 - Canva templates for business cards, social posts and email marketing
 - Introduction / pitch deck (8-12 slides) and one pager (front / back) in PowerPoint format

\$49,185 total (with 10% TLB package discount)

Out of Scope:

- Custom Photography and Video Production
- Stock Photography and Video Licensing
- Font Licensing
- Squarespace / Website Hosting Fees
- Extended Design, Illustration and Visual Development
- Extended Copywriting and Content Development
- Custom Web Development and Implementation

This project will be billed at a fixed fee of \$49,185. Additional services and work outside of the scope of the deliverables above are not to be performed without the written consent of the client. Additional approved scope is subject to a separate fixed fee statement of work, or billed additionally at a rate of \$200 / hour.

Project fees will be billed on the following schedule:

Milestone	Total
Project Start - February 1, 2024	\$16,395
Upon Brand Design + Web Architecture Delivery (est. March, 2024)	\$16,395
Upon Website + Marketing Content Delivery (est. April, 2024)	\$16,395
Total	\$49,185

** Travel expenses to be billed additionally at cost as incurred and based on written approval*

The proposed project start date is February 1, 2024, with an estimated completion date of May 17, 2024.

Terms and Conditions

There's a *lot* of legal verbiage below that basically says:

- 1) Once we give you final deliverables and artwork, you own them and maintain full rights to them—however, we can't guarantee them if you make any changes
- 2) We maintain the rights to all non-proprietary preliminary working artwork, tools, and materials (unless otherwise noted)

- 3) We'll provide the scoped services outlined in this document at a rate of \$200 per hour, and first invoice is due 15 days from receipt with all following invoices due 30 days from receipt
- 4) The number of changes we will provide on the services outlined in this document are limited to the specified amount, and changes outside of scope will be estimated and billed at an hourly rate or as a fixed-fee project addendum
- 5) Any additional costs outside of this document scope, including any expenses, will not be incurred or invoiced to you without written—or emailed—approval from you, the client
- 6) Confidential information shared between us will remain confidential for any contractors or employees of Found Brand Agency

1. Definitions

1.1 Agreement means the entire content of this document, together with any exhibits, schedules or attachments.

1.2 Client Content means all materials, information, factual, promotional, or other advertising claims, photography, writings and other creative content provided by Client for use in the preparation of and/or incorporation in the Deliverables.

1.3 Copyrights means the property rights in original works of authorship, expressed in a tangible medium of expression, as defined and enforceable under U.S. Copyright Law.

1.4 Deliverables means the services and work product specified in the Scope of Work above, to be delivered by Agency to Client, in the form and media specified.

1.5 Tools means all design tools developed and/or utilized by Agency in performing the Services, including without limitation pre-existing and newly developed software including source code, web authoring tools, type fonts, and application tools, together with any other software, or other inventions whether or not patentable, and general non-copyrightable concepts such as website design, architecture, layout, navigational and functional elements.

1.6 Final Works means all content developed by Agency, or commissioned by Agency, exclusively for the Project and incorporated in the Final Deliverables, including, but not limited to, any and all written content, code, visual elements, graphic design, illustration, photography, animation, motion design, audio-visual works, sounds, typographic treatments and text, modifications to Client Content, and Agency's selection, arrangement and coordination of such elements together with Client Content and/or Third Party Materials.

1.7 Final Deliverables means the final versions of Deliverables provided by Agency and accepted by Client.

1.8 Preliminary Works means all creative content including, but not limited to, concepts, sketches, visual presentations, or other alternate or preliminary designs and documents developed by Agency and which may or may not be shown and or delivered to Client for consideration but do not form part of the Final Works.

1.9 Project means the scope and purpose of the Client's identified usage of the work product as described in the Agreement.

1.10 Services means all services and the work product to be provided to Client by Agency as described and defined in this document.

1.11 Third Party Materials means proprietary third party materials which are incorporated into the Final Deliverables, including without limitation stock photography or illustration.

1.12 Trademarks means trade names, words, symbols, designs, logos or other devices or designs used in the Final Deliverables to designate the origin or source of the goods or services of Client.

1.13 Working Files means all underlying work product and digital files utilized by Agency to create the Preliminary Works and Final Works.

2. Agreement Terms

The terms of this Agreement will be effective for 14 days after presentation to Client. In the event the Agreement is not executed by Client within the time identified, a new Agreement subject to changes and amendments will be presented to Client.

3. Fees, Expenses, and Costs

3.1 Fees. Client shall pay to Agency fees in the amounts and according to the payment schedule outlined in this Agreement, and all applicable sales, use or value added taxes, even if calculated or assessed subsequent to the payment schedule.

3.2 Expenses. Client shall pay Agency's expenses incurred in connection with this Agreement as follows: (a) incidental and out-of-pocket expenses including but not limited to costs for telephone calls, postage, shipping, overnight courier, service bureaus, typesetting, blueprints, models, presentation materials, photocopies, computer expenses, parking fees and tolls, and taxis at cost plus Agency's standard markup of zero percent (0%), and, if applicable, a mileage reimbursement at .56 per mile; and (b) travel expenses including transportation, meals, and lodging, incurred by Agency with Client's prior approval.

3.3 Additional Costs. The Project pricing includes Agency's fee only. Any and all outside costs including, but not limited to, equipment rental, photographer's costs and fees, photography and/or artwork licenses, prototype production costs, talent fees, music licenses and online access or hosting fees, will be billed to Client unless specifically otherwise provided for in the Agreement.

3.4 Invoices. First invoice is payable within 15 days of receipt. All following invoices are payable within 30 days of receipt. A monthly service charge of 2.5 percent is payable on all overdue balances. Payments will be credited first to late payment charges and next to the unpaid balance. Client shall be responsible for all collection or legal fees necessitated by lateness or default in payment. Agency reserves the right to withhold delivery and any transfer of ownership of any current work if accounts are not current or overdue invoices are not paid in full. All grants of any license to use or transfer of ownership of any intellectual property rights under this Agreement are conditioned upon receipt of payment in full which shall be inclusive of any and all outstanding fees, expenses, and outside costs.

4. Changes

4.1 General Changes. Unless otherwise provided in the Agreement, and except as otherwise provided for herein, Client shall pay additional charges for changes requested by Client which are outside the scope of the Services on a time and materials basis, at Agency's standard hourly rate of \$200 per hour. Such charges shall be in addition to all other amounts payable under the Agreement, despite any maximum budget, contract price or final price identified therein. Agency may extend or modify any delivery schedule or deadlines in the Agreement and Deliverables as may be required by such Changes.

4.2 Substantive Changes. If Client requests or instructs Changes that amount to a revision in or near excess of 25% of the time required to produce the Deliverables, and or the value or scope of the Services, Agency shall be entitled to submit a

new and separate Agreement to Client for written approval. Work shall not begin on the revised services until a fully signed revised Agreement and, if required, any additional retainer fees are received by Agency.

4.3 Timing. Agency will prioritize performance of the Services as may be necessary or as identified in the Agreement, and will undertake commercially reasonable efforts to perform the Services within the time(s) identified in the Agreement. Client agrees to review Deliverables within the time identified for such reviews and to promptly either, (i) approve the Deliverables in writing or (ii) provide written comments and/or corrections sufficient to identify the Client's concerns, objections or corrections to Agency. The Agency shall be entitled to request written clarification of any concern, objection or correction. Client acknowledges and agrees that Agency's ability to meet any and all schedules is entirely dependent upon Client's prompt performance of its obligations to provide materials and written approvals and/or instructions pursuant to the Agreement and that any delays in Client's performance or Changes in the Services or Deliverables requested by Client may delay delivery of the Deliverables. Any such delay caused by Client shall not constitute a breach of any term, condition or Agency's obligations under this Agreement.

4.4 Testing and Acceptance. Agency will exercise commercially reasonable efforts to test Deliverables requiring testing and to make all necessary corrections prior to providing Deliverables to Client. Client, within five (5) business days of receipt of each Deliverable, shall notify Agency, in writing, of any failure of such Deliverable to comply with the specifications set forth in the Agreement, or of any other objections, corrections, changes or amendments Client wishes made to such Deliverable. Any such written notice shall be sufficient to identify with clarity any objection, correction or change or amendment, and Agency will undertake to make the same in a commercially timely manner. Any and all objections, corrections, changes or amendments shall be subject to the terms and conditions of this Agreement. In the absence of such notice from Client, the Deliverable shall be deemed accepted.

5. Client Responsibilities

Client acknowledges that it shall be responsible for performing the following in a reasonable and timely manner:

- (a) coordination of any decision-making with parties other than Agency;
- (b) provision of Client Content in a form suitable for reproduction or incorporation into the Deliverables without further preparation, unless otherwise expressly provided in the Agreement;
- (c) final proofreading and in the event that Client has approved Deliverables but errors, such as, by way of example, not limitation, typographic errors or misspellings, remain in the finished product, Client shall incur the cost of correcting such errors ; and (d) ensuring that all information and claims comprising Client Content are accurate, legal and conform to applicable standards in Client's industry.

6. Accreditation and Promotion

Agency retains the right to reproduce, publish and display the Deliverables in Agency case studies, portfolios and websites, and in galleries, design periodicals and other media or exhibits for the purposes of recognition of creative excellence or professional advancement, and to be credited with authorship of the Deliverables in connection with such uses. Either party, subject to the other's reasonable approval, may describe its role in relation to the Project and, if applicable, the services

provided to the other party on its website and in other promotional materials, and, if not expressly objected to, include a link to the other party's website.

7. Confidential Information

Each party acknowledges that in connection with this Agreement it may receive certain confidential or proprietary technical and business information and materials of the other party, including without limitation Preliminary Works ("Confidential Information"). Each party, its agents and employees shall hold and maintain in strict confidence all Confidential Information, shall not disclose Confidential Information to any third party, and shall not use any Confidential Information except as may be necessary to perform its obligations under the Agreement except as may be required by a court or governmental authority. Notwithstanding the foregoing, Confidential Information shall not include any information that is in the public domain or becomes publicly known through no fault of the receiving party, or is otherwise properly received from a third party without an obligation of confidentiality.

8. Relationship of the Parties

8.1 Independent Entity. Agency is an independent entity, not an employee of Client or any company affiliated with Client. Agency shall provide the Services under the general direction of Client, but Agency shall determine, in Agency's sole discretion, the manner and means by which the Services are accomplished. This Agreement does not create a partnership or joint venture and neither party is authorized to act as agent or bind the other party except as expressly stated in this Agreement. All rights, if any, granted to Client are contractual in nature and are wholly defined by the express written agreement of the parties and the various terms and conditions of this Agreement.

8.2 Contracted Agents. Agency shall be permitted to engage and/or use third party designers or other service providers as independent contractors in connection with the Services ("Contracted Agents"). Notwithstanding, Agency shall remain fully responsible for such Contracted Agents' compliance with the various terms and conditions of this Agreement.

8.3 No Solicitation. During the term of this Agreement, and for a period of six (6) months after expiration or termination of this Agreement, Client agrees not to solicit, recruit, engage or otherwise employ or retain, on a full-time, part-time, consulting, work-for-hire or any other kind of basis, any Agency, employee or Contracted Agent of Agency, whether or not said person has been assigned to perform tasks under this Agreement. In the event such employment, consultation or work-for-hire event occurs, Client agrees that Agency shall be entitled to an agency commission to be the greater of, either (a) 25 percent of said person's starting salary with Client, or (b) 25 percent of fees paid to said person if engaged by Client as an independent contractor. In the event of (a) above, payment of the commission will be due within 30 days of the employment starting date. In the event of (b) above, payment will be due at the end of any month during which the independent contractor performed services for Client. Agency, in the event of nonpayment and in connection with this section, shall be entitled to seek all remedies under law and equity.

8.4 No Exclusivity. The parties expressly acknowledge that this Agreement does not create an exclusive relationship between the parties. Client is free to engage others to perform services of the same or similar nature to those provided by Agency, and Agency shall be entitled to offer and provide design services to others, solicit other Clients and otherwise advertise the services offered by Agency.

9. Warranties and Representations

9.1 By Client

Client represents, warrants and covenants to Agency that (a) Client owns all right, title, and interest in, or otherwise has full right and authority to permit the use of the Client Content, (b) to the best of Client's knowledge, the Client Content is accurate, legal, conforms to ethical standards of the Client's industry, does not infringe the rights of any third party, and use of the Client Content as well as any Trademarks in connection with the Project does not and will not violate the rights of any third parties, (c) Client shall comply with the terms and conditions of any licensing agreements which govern the use of Third Party Materials, and (d) Client shall comply with all laws and regulations as they relate to the Services and Deliverables.

9.2 By Agency

(a) Agency hereby represents, warrants and covenants to Client that Agency will provide the Services identified in the Agreement in a professional and workmanlike manner and in accordance with all reasonable professional standards for such services.

(b) Agency further represents, warrants and covenants to Client that (i) except for Third Party Materials and Client Content, the Final Deliverables shall be the original work of Agency and/or its independent contractors, (ii) in the event that the Final Deliverables include the work of independent contractors commissioned for the Project by Agency, Agency shall have secure agreements from such contractors granting all necessary rights, title, and interest in and to the Final Deliverables sufficient for Agency to grant the intellectual property rights provided in this Agreement, and (iii) to the best of Agency's knowledge, the Final Works provided by Agency and Agency's subcontractors does not infringe the rights of any party, and use of same in connection with the Project will not violate the rights of any third parties. In the event Client or third parties modify or otherwise use the Deliverables outside of the scope or for any purpose not identified in the Agreement or this Agreement or contrary to the terms and conditions noted herein, all representations and warranties of Agency shall be void.

(c) Except for the express representations and warranties stated in this Agreement, Agency makes no warranties whatsoever. Agency explicitly disclaims any other warranties of any kind, either express or implied, including but not limited to warranties of merchantability or fitness for a particular purpose or compliance with laws or government rules or regulations applicable to the Project.

10. Indemnification and Liability

10.1 By Client. Client agrees to indemnify, save and hold harmless Agency from any and all damages, liabilities, costs, losses or expenses arising out of any claim, demand, or action by a third party arising out of any breach of Client's responsibilities or obligations, representations or warranties under this Agreement. Under such circumstances Agency shall promptly notify Client in writing of any claim or suit; (a) Client has sole control of the defense and all related settlement negotiations; and (b) Agency provides Client with commercially reasonable assistance, information and authority necessary to perform Client's obligations under this section. Client will reimburse the reasonable out-of-pocket expenses incurred by Agency in providing such assistance.

10.2 By Agency. Subject to the terms, conditions, express representations and warranties provided in this Agreement, Agency agrees to indemnify, save and hold harmless Client from any and all damages, liabilities, costs, losses or expenses arising out of any finding of fact which is inconsistent with Agency's representations and warranties made herein, except in the event any such claims, damages, liabilities, costs, losses or expenses arise directly as a result of gross

negligence or misconduct of Client provided that (a) Client promptly notifies Agency in writing of the claim; (b) Agency shall have sole control of the defense and all related settlement negotiations; and (c) Client shall provide Agency with the assistance, information and authority necessary to perform Agency's obligations under this section. Notwithstanding the foregoing, Agency shall have no obligation to defend or otherwise indemnify Client for any claim or adverse finding of fact arising out of or due to Client Content, any unauthorized content, improper or illegal use, or the failure to update or maintain any Deliverables provided by Agency.

10.3 Settlement Approval. The indemnifying party may not enter into any settlement agreement without the indemnified party's written consent.

10.4 Limitation of Liability. The services and the work product of Agency are sold "as is." In all circumstances, the maximum liability of Agency, its directors, officers, employees, design agents and affiliates ("Agency Parties"), to Client for damages for any and all causes whatsoever, and Client's maximum remedy, regardless of the form of action, whether in contract, tort or otherwise, shall be limited to the net profit of Agency. In no event shall Agency be liable for any lost data or content, lost profits, business interruption or for any indirect, incidental, special, consequential, exemplary or punitive damages arising out of or relating to the materials or the services provided by Agency, even if Agency has been advised of the possibility of such damages, and notwithstanding the failure of essential purpose of any limited remedy.

11. Term and Termination

11.1 Term. This Agreement shall commence upon the Effective Date and shall remain effective until the Services are completed and delivered.

11.2 Termination. This Agreement may be terminated for convenience at any time by either party effective immediately upon notice, or the mutual agreement of the parties, or for cause if any party:

- (a) becomes insolvent, files a petition in bankruptcy, makes an assignment for the benefit of its creditors; or
- (b) breaches any of its material responsibilities or obligations under this Agreement, which breach is not remedied within ten (10) days from receipt of written notice of such breach.

11.3 In the event of termination, Agency shall be compensated for the Services performed through the date of termination in the amount of (a) any advance payment, (b) a prorated portion of the fees due, or (c) hourly fees for work performed by Agency or Contracted Agents as of the date of termination, whichever is greater; and Client shall pay all Expenses, fees, out of pockets together with any Additional Costs incurred through and up to, the date of cancellation. In the event of termination for convenience by Client, Client shall pay in addition to the above an early termination fee equal to 25% of the total project fee, Schedule A shall not be effective, and Client shall not have rights to use Deliverables except upon written consent from Agency provided after such termination.

11.4 In the event of termination for convenience by Agency or for cause by Client, and upon full payment of compensation as provided herein, Agency grants to Client such right and title as provided for in Schedule A of this Agreement with respect to those Deliverables provided to, and accepted by Client as of the date of termination.

11.5 Upon expiration or termination of this Agreement: (a) each party shall return or, at the disclosing party's request, destroy the Confidential Information of the other party, and (b) other than as provided herein, all rights and obligations of each party under this Agreement, exclusive of the Services, shall survive.

12. General

12.1 Modification/Waiver. This Agreement may be modified by the parties. Any modification of this Agreement must be in writing, except that Agency's invoices may include, and Client shall pay, expenses or costs that Client authorizes by electronic mail in cases of extreme time sensitivity. Failure by either party to enforce any right or seek to remedy any breach under this Agreement shall not be construed as a waiver of such rights nor shall a waiver by either party of default in one or more instances be construed as constituting a continuing waiver or as a waiver of any other breach.

12.2 Notices. All notices to be given hereunder shall be transmitted in writing either by facsimile or electronic mail with return confirmation of receipt or by certified or registered mail, return receipt requested, and shall be sent to the addresses identified below, unless notification of change of address is given in writing. Notice shall be effective upon receipt or in the case of fax or email, upon confirmation of receipt (by automated confirmation or substantive reply by the recipient).

12.3 No Assignment. Neither party may assign, whether in writing or orally, or encumber its rights or obligations under this Agreement or permit the same to be transferred, assigned or encumbered by operation of law or otherwise, without the prior written consent of the other party except that this Agreement may be transferred or sold as part of a transfer or sale of the assigning party's entire business or portion thereof relating to the Project.

12.4 Force Majeure. Agency shall not be deemed in breach of this Agreement if Agency is unable to complete the Services or any portion thereof by reason of fire, earthquake, flood, hurricane or other severe weather, labor dispute, act of war, terrorism, riot or other severe civil disturbance, death, illness or incapacity of Agency or any local, state, federal, national or international law, governmental order or regulation or any other event beyond Agency's control (collectively, "Force Majeure Event"). Upon occurrence of any Force Majeure Event, Agency shall give notice to Client of its inability to perform or of delay in completing the Services and shall propose revisions to the schedule for completion of the Services.

12.5 Governing Law and Dispute Resolution. The formation, construction, performance and enforcement of this Agreement shall be in accordance with the laws of the United States and the state of Texas without regard to its conflict of law provisions or the conflict of law provisions of any other jurisdiction. In the event of a dispute arising out of this Agreement, the parties agree to attempt to resolve any dispute by negotiation between the parties. If they are unable to resolve the dispute, either party may commence mediation and/or binding arbitration through the American Arbitration Association, or other forum mutually agreed to by the parties. The prevailing party in any dispute resolved by binding arbitration or litigation shall be entitled to recover its attorneys' fees and costs. In all other circumstances, the parties specifically consent to the local, state and federal courts located in the state of Texas. The parties hereby waive any jurisdictional or venue defenses available to them and further consent to service of process by mail. Client acknowledges that Agency will have no adequate remedy at law in the event Client uses the deliverables in any way not permitted hereunder, and hereby agrees that Agency shall be entitled to equitable relief by way of temporary and permanent injunction, and such other and further relief at law or equity as any arbitrator or court of competent jurisdiction may deem just and proper, in addition to any and all other remedies provided for herein.

12.6 Severability. Whenever possible, each provision of this Agreement shall be interpreted in such manner as to be effective and valid under applicable law, but if any provision of this Agreement is held invalid or unenforceable, the remainder of this Agreement shall nevertheless remain in full force and effect and the invalid or unenforceable provision shall be replaced by a valid or enforceable provision.

IP 1. Rights in the Final Deliverables

IP 1.1 Final Works. Upon completion of the Services, and expressly conditioned upon full payment of all fees and costs due, Agency assigns to Client all of Agency's Copyrights in and to the Final Works, including Trademarks, and Agency shall deliver to Client all Working Files related to the Final Works. Agency shall cooperate with Client and shall execute any additional documents reasonably requested by Client to evidence such assignment, and Client shall reimburse Agency for Agency's reasonable time and out-of-pocket expenses in connection therewith.

IP 1.2 Trademarks. Client shall have sole responsibility for ensuring that Trademarks do not infringe the rights of third parties, and Client shall indemnify, save and hold harmless Agency from any and all damages, liabilities, costs, losses or expenses arising out of any claim, demand, or action by a third party alleging trademark infringement, or arising out of Client's failure to obtain trademark clearance or permissions, for use of Trademarks.

IP 1.3 Client Content. Client Content, including pre-existing Trademarks, shall remain the sole property of Client or its respective suppliers, and Client or its suppliers shall be the sole owner of all trademark, trade secrets, patents, Copyrights, and other rights in connection therewith. Client hereby grants to Agency a nonexclusive, nontransferable license to use, reproduce, modify, display and publish the Client Content solely in connection with Agency's performance of the Services and promotional uses of the Deliverables as authorized in this Agreement.

IP 1.4 Third Party Materials. Intellectual property rights in Third Party Materials shall be owned by the respective third parties. Agency shall inform Client of all Third Party Materials to be procured by Agency that Client may need to license at Client's own expense, and unless otherwise arranged by Client, Agency shall obtain a license for Client to use the Third Party Materials consistent with the usage rights granted herein. Client shall indemnify, save and hold harmless Agency from any and all damages, liabilities, costs, losses or expenses arising out of any claim, demand, or action by a third party arising out of Client's failure to obtain copyright, trademark, publicity, privacy, defamation or other releases or permissions with respect to materials included in the Final Works at Client's request.

IP 2. Rights Reserved to Found Brand Agency

IP 2.1 Preliminary Works/Working Files. Agency retains all proprietary rights, including property ownership, intellectual property rights and Copyrights, in and to all Preliminary Works and Working Files, and Client shall return to Designer all Preliminary Works and Working Files in Client's possession within thirty (30) days of completion of the Services.

IP 2.2 Original Artwork. Agency retains property ownership in any original artwork comprising Final Works, including all rights to display or sell such artwork. Client shall return all original artwork to Agency within thirty (30) days of completion of the Services.

IP 2.3 Tools. Tools and all intellectual property rights therein, including Copyrights, shall be owned solely by Agency. Agency hereby grants to Client a nonexclusive, nontransferable (other than the right to sublicense such uses to Client's publisher, web hosting or Internet service providers), perpetual, worldwide license to use the Tools solely with the Final Deliverables for the Project. Client may not directly or indirectly, in any form or manner, decompile, reverse engineer, or otherwise disassemble or modify any Tools comprising software or technology.

By their execution below, each signatory represents that it has the full authority to enter into this Agreement, and the parties agree to all of the terms and conditions of this Agreement effective as of the last date of signature below.

For Found Brand Agency

Name
Steve Hurst

Date
01/24/2024

Steven M. Hurst

Signature

For The Launch Box

Name
Amy Kenly

Date
01/26/2024

Amy Kenly

Signature

Signature Certificate

Reference number: DJ6CP-7YUAH-RETPD-OLK5G

Signer

Timestamp

Signature

Steve Hurst

Email: steve@foundbrandagency.com

Sent:

23 Jan 2024 22:24:03 UTC

Viewed:

24 Jan 2024 17:08:58 UTC

Signed:

24 Jan 2024 17:09:43 UTC

Steven M. Hurst

Recipient Verification:

✓ Email verified

24 Jan 2024 17:08:58 UTC

IP address: 136.49.182.233

Location: Austin, United States

Amy Kenly

Email: amy.kenly@thelaunchbox.com

Shared via link

Sent:

23 Jan 2024 22:24:03 UTC

Viewed:

25 Jan 2024 23:22:20 UTC

Signed:

26 Jan 2024 17:26:41 UTC

Amy Kenly

Recipient Verification:

✓ Email verified

25 Jan 2024 23:22:20 UTC

IP address: 12.184.218.22

Location: Irving, United States

Document completed by all parties on:

26 Jan 2024 17:26:41 UTC

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